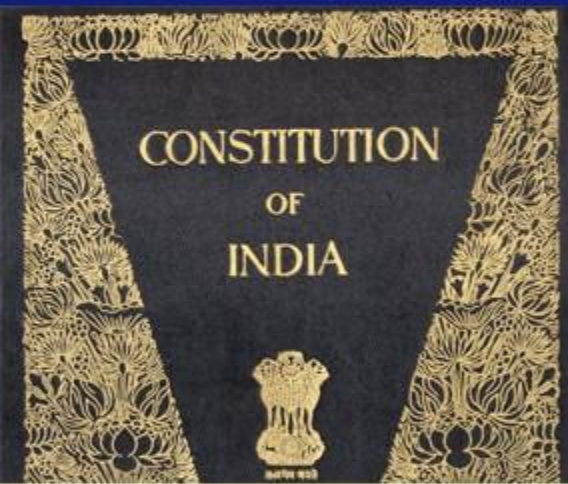


INDIAN POLITY



MODULE - 43

FUNDAMENTAL RIGHTS

- WRITS IN INDIA
- ARTICLE 33 & 34

WRITS – TYPES & SCOPE

2

MANDAMUS

1 It literally means we command. It is a command issued by the court to a public official asking him to perform his official duties that he has failed or refused to perform.

2 It can also be issued against any public body, a corporation, an inferior court, a tribunal or Government for the same purpose.

3 The writ of mandamus cannot be issued

- a) Against a private individual or body
- b) To enforce departmental instruction that does not possess statutory force
- c) When the duty is discretionary and not mandatory
- d) To enforce a contractual obligation
- e) Against the President of India or the State Governors, and
- f) Against the Chief Justice of a high court acting in judicial capacity.

WRITS – TYPES & SCOPE

3

PROHIBITION

“Mandamus directs activity, Prohibition directs inactivity”



1 Literally, it means “to forbid”. It is issued by a higher court to a lower court or tribunal to prevent the latter from exceeding its jurisdiction or usurping a jurisdiction that it does not possess.

2 Thus, unlike mandamus that directs activity, the prohibition directs inactivity.

3 The writ of prohibition can be issued only against judicial and quasi-judicial authorities. It is not available against administrative authorities, legislative bodies, and private individuals or bodies.

WRITS – TYPES & SCOPE

4

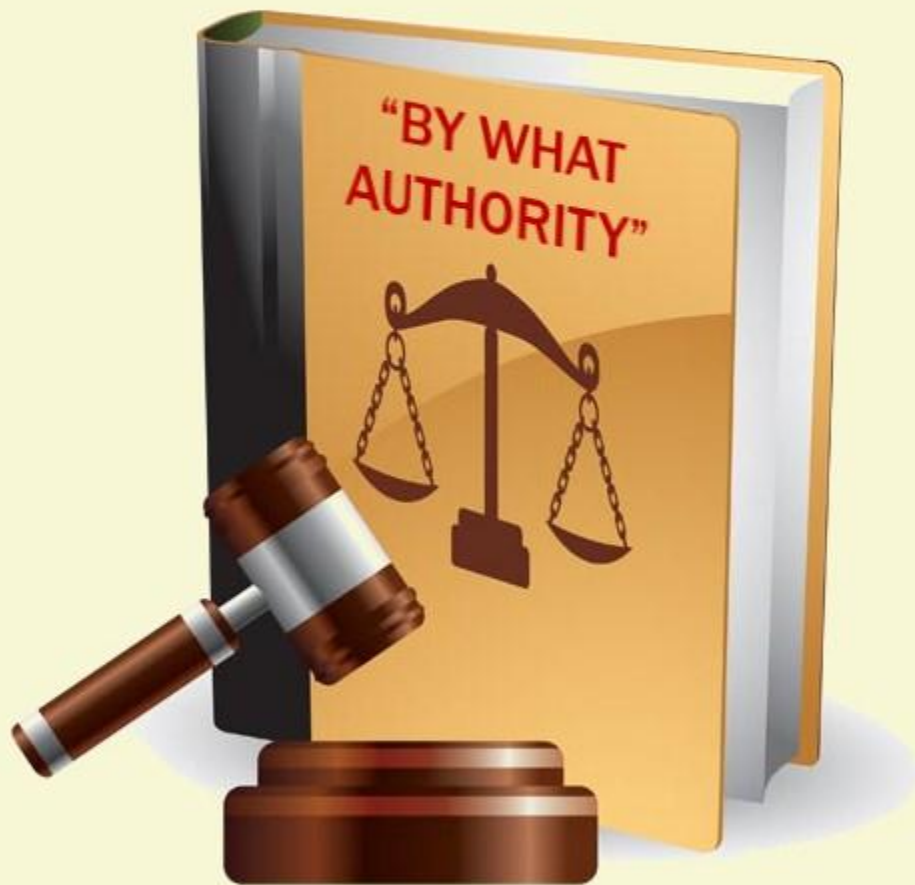
CERTIORARI

“Prohibition is only preventive, Certiorari is both preventive as well as curative”

- 1 In the literal sense, it means “to be certified” or “to be informed”.
- 2 It is issued by a higher court to a lower court or tribunal either to transfer a case pending with the latter to itself or to squash the order of the latter in the case.
- 3 It is issued on the grounds of excess of jurisdiction or lack of jurisdiction or error of law. Thus, unlike prohibition, which is only preventive, Certiorari is both preventive as well as curative.
- 4 Previously, the writ of certiorari could be issued only against judicial and quasi-judicial authorities and not against administrative authorities.
- 5 However, in 1991, the Supreme Court ruled that the certiorari can be issued even against administrative authorities affecting rights of individuals.
- 6 Like prohibition, certiorari is also not available against legislative bodies and private individuals or bodies.

WRITS – TYPES & SCOPE

5 QUO-WARRANTO



- 1** In the literal sense, it means “**by what authority or warrant**”. It is issued by the court to enquire into the **legality of claim of a person to a public office**. Hence, it prevents **illegal usurpation** of public office by a person.
- 2** The writ can be issued only in case of a substantive public office of a permanent character created by a statute or by the Constitution. It cannot be issued in cases of ministerial office or private office.
- 3** Unlike the other four writs, **this can be sought by any interested person and not necessarily by the aggrieved person**.

ARMED FORCES AND FUNDAMENTAL RIGHTS



1 Article 33 empowers the Parliament to **restrict or abrogate** the fundamental rights of the members of armed forces, para-military forces, police forces, intelligence agencies and analogous forces.

2 The objective of this provision is to ensure the proper discharge of their duties and the **maintenance of discipline** among them.

3 The power to make laws under Article 33 is **conferred only on Parliament** and not on State Legislatures.

ARMED FORCES AND FUNDAMENTAL RIGHTS



- 4 Any such law made by Parliament **cannot be challenged in any court on the ground of contravention of any of the fundamental rights.**
- 5 Accordingly, the Parliament has enacted the Army Act (1950), the Navy Act (1950), the Air Force Act (1950), the Polices forces Act (Restriction of Rights) Act, 1966, the Border Security Forces Act and so on.
- 6 These impose restrictions on their freedom of speech, right to form associations, right to be members of trade unions or political associations, right to communicate with the press, right to attend public meetings or demonstrations, etc.

ARMED FORCES AND FUNDAMENTAL RIGHTS



- 7** The expression members of the armed forces also covers such employees of the armed forces as barbers, carpenters, mechanics cooks, chowkidars, bootmakers, tailors, who are **non-combatants**.
- 8** A Parliamentary law enacted under Article 33 can **also exclude the court martials (tribunals established under the military law) from the writ jurisdiction of the Supreme Court and the High Courts**, so far as the enforcement of Fundamental Rights is concerned.

MARTIAL LAW AND FUNDAMENTAL RIGHTS



- 1** Article 34 provides for the restrictions on fundamental rights while martial law is in force in any area within the territory of India.
- 2** It empowers the Parliament to indemnify any Government servant or any other person for any act done by him in connection with maintenance or restoration of order in any area, where martial law was in force.
- 3** The Parliament can also validate any sentence passed, punishment inflicted, forfeiture ordered or other act done under martial law in such area.

MARTIAL LAW AND FUNDAMENTAL RIGHTS

DAWN
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 KARACHI
 Wednesday, October 8, 1958
 22 Bahadur Avenue, 5218
 Editor: ALTAUF HUSAIN

CONSTITUTION ABROGATED

Martial Law all over the country
POLITICAL PARTIES ABOLISHED
Parliament, legislatures and cabinets dismissed

PRESIDENT MIRA
 ALL GOVERNMENT OFFERS REJECTED
 1,500 more to join

DISTRIBUTION OF LANDS ORDERED
 President's directive to meet food shortage
 By Dawn Staff Correspondent
 President Iskander Mirza has directed the Government of West Pakistan to complete the distribution of all lands for which irrigation is available within a period of three months from the receipt of these directions.

First priority to agriculture
 RECOMMENDATION OF NEG

GEN. AYUB
 Martial Law Administrator's proclamation

4

The Act of Indemnity made by the Parliament cannot be challenged in any court on the ground of contravention of any of the Fundamental Rights.

5

The concept of martial law has been borrowed in India from the English common law. However, the expression "Martial law" has not been defined anywhere in the Constitution. Literally, it means "military rule"

6

It refers to a situation where civil administration is run by the military authorities according to their own rules and regulations framed outside the ordinary law.

SAREES
 Ushnat Mal Madan Lal
 100, 101, 102, 103, 104, 105, 106, 107, 108, 109, 110, 111, 112, 113, 114, 115, 116, 117, 118, 119, 120, 121, 122, 123, 124, 125, 126, 127, 128, 129, 130, 131, 132, 133, 134, 135, 136, 137, 138, 139, 140, 141, 142, 143, 144, 145, 146, 147, 148, 149, 150, 151, 152, 153, 154, 155, 156, 157, 158, 159, 160, 161, 162, 163, 164, 165, 166, 167, 168, 169, 170, 171, 172, 173, 174, 175, 176, 177, 178, 179, 180, 181, 182, 183, 184, 185, 186, 187, 188, 189, 190, 191, 192, 193, 194, 195, 196, 197, 198, 199, 200, 201, 202, 203, 204, 205, 206, 207, 208, 209, 210, 211, 212, 213, 214, 215, 216, 217, 218, 219, 220, 221, 222, 223, 224, 225, 226, 227, 228, 229, 230, 231, 232, 233, 234, 235, 236, 237, 238, 239, 240, 241, 242, 243, 244, 245, 246, 247, 248, 249, 250, 251, 252, 253, 254, 255, 256, 257, 258, 259, 260, 261, 262, 263, 264, 265, 266, 267, 268, 269, 270, 271, 272, 273, 274, 275, 276, 277, 278, 279, 280, 281, 282, 283, 284, 285, 286, 287, 288, 289, 290, 291, 292, 293, 294, 295, 296, 297, 298, 299, 300, 301, 302, 303, 304, 305, 306, 307, 308, 309, 310, 311, 312, 313, 314, 315, 316, 317, 318, 319, 320, 321, 322, 323, 324, 325, 326, 327, 328, 329, 330, 331, 332, 333, 334, 335, 336, 337, 338, 339, 340, 341, 342, 343, 344, 345, 346, 347, 348, 349, 350, 351, 352, 353, 354, 355, 356, 357, 358, 359, 360, 361, 362, 363, 364, 365, 366, 367, 368, 369, 370, 371, 372, 373, 374, 375, 376, 377, 378, 379, 380, 381, 382, 383, 384, 385, 386, 387, 388, 389, 390, 391, 392, 393, 394, 395, 396, 397, 398, 399, 400, 401, 402, 403, 404, 405, 406, 407, 408, 409, 410, 411, 412, 413, 414, 415, 416, 417, 418, 419, 420, 421, 422, 423, 424, 425, 426, 427, 428, 429, 430, 431, 432, 433, 434, 435, 436, 437, 438, 439, 440, 441, 442, 443, 444, 445, 446, 447, 448, 449, 450, 451, 452, 453, 454, 455, 456, 457, 458, 459, 460, 461, 462, 463, 464, 465, 466, 467, 468, 469, 470, 471, 472, 473, 474, 475, 476, 477, 478, 479, 480, 481, 482, 483, 484, 485, 486, 487, 488, 489, 490, 491, 492, 493, 494, 495, 496, 497, 498, 499, 500, 501, 502, 503, 504, 505, 506, 507, 508, 509, 510, 511, 512, 513, 514, 515, 516, 517, 518, 519, 520, 521, 522, 523, 524, 525, 526, 527, 528, 529, 530, 531, 532, 533, 534, 535, 536, 537, 538, 539, 540, 541, 542, 543, 544, 545, 546, 547, 548, 549, 550, 551, 552, 553, 554, 555, 556, 557, 558, 559, 560, 561, 562, 563, 564, 565, 566, 567, 568, 569, 570, 571, 572, 573, 574, 575, 576, 577, 578, 579, 580, 581, 582, 583, 584, 585, 586, 587, 588, 589, 590, 591, 592, 593, 594, 595, 596, 597, 598, 599, 600, 601, 602, 603, 604, 605, 606, 607, 608, 609, 610, 611, 612, 613, 614, 615, 616, 617, 618, 619, 620, 621, 622, 623, 624, 625, 626, 627, 628, 629, 630, 631, 632, 633, 634, 635, 636, 637, 638, 639, 640, 641, 642, 643, 644, 645, 646, 647, 648, 649, 650, 651, 652, 653, 654, 655, 656, 657, 658, 659, 660, 661, 662, 663, 664, 665, 666, 667, 668, 669, 670, 671, 672, 673, 674, 675, 676, 677, 678, 679, 680, 681, 682, 683, 684, 685, 686, 687, 688, 689, 690, 691, 692, 693, 694, 695, 696, 697, 698, 699, 700, 701, 702, 703, 704, 705, 706, 707, 708, 709, 710, 711, 712, 713, 714, 715, 716, 717, 718, 719, 720, 721, 722, 723, 724, 725, 726, 727, 728, 729, 730, 731, 732, 733, 734, 735, 736, 737, 738, 739, 740, 741, 742, 743, 744, 745, 746, 747, 748, 749, 750, 751, 752, 753, 754, 755, 756, 757, 758, 759, 760, 761, 762, 763, 764, 765, 766, 767, 768, 769, 770, 771, 772, 773, 774, 775, 776, 777, 778, 779, 780, 781, 782, 783, 784, 785, 786, 787, 788, 789, 790, 791, 792, 793, 794, 795, 796, 797, 798, 799, 800, 801, 802, 803, 804, 805, 806, 807, 808, 809, 810, 811, 812, 813, 814, 815, 816, 817, 818, 819, 820, 821, 822, 823, 824, 825, 826, 827, 828, 829, 830, 831, 832, 833, 834, 835, 836, 837, 838, 839, 840, 841, 842, 843, 844, 845, 846, 847, 848, 849, 850, 851, 852, 853, 854, 855, 856, 857, 858, 859, 860, 861, 862, 863, 864, 865, 866, 867, 868, 869, 870, 871, 872, 873, 874, 875, 876, 877, 878, 879, 880, 881, 882, 883, 884, 885, 886, 887, 888, 889, 890, 891, 892, 893, 894, 895, 896, 897, 898, 899, 900, 901, 902, 903, 904, 905, 906, 907, 908, 909, 910, 911, 912, 913, 914, 915, 916, 917, 918, 919, 920, 921, 922, 923, 924, 925, 926, 927, 928, 929, 930, 931, 932, 933, 934, 935, 936, 937, 938, 939, 940, 941, 942, 943, 944, 945, 946, 947, 948, 949, 950, 951, 952, 953, 954, 955, 956, 957, 958, 959, 960, 961, 962, 963, 964, 965, 966, 967, 968, 969, 970, 971, 972, 973, 974, 975, 976, 977, 978, 979, 980, 981, 982, 983, 984, 985, 986, 987, 988, 989, 990, 991, 992, 993, 994, 995, 996, 997, 998, 999, 1000

INDIAN EXPRESS
 English newspaper published daily except on Sundays and public holidays in India
 Vol. 117 No. 112
 New Delhi, Friday April 25, 1957

Gen Niazi arrested
 Martial law imposed in major Pakistan cities
 3 shot dead for breaking curfew

Students, police clash in Lucknow

Delhi Council dissolved, elections soon

Writ against dissolution directive

Decision on Assembly dissolution on Sunday

MARTIAL LAW AND FUNDAMENTAL RIGHTS

7 It thus imply the suspension of ordinary law and the Government by military tribunals. It is different from the military law that is applicable to the armed forces.

8 There is also no specific or express provision in the Constitution that authorizes the executive to declare martial law.

8 However, it is implicit in Article 34 under which martial law can be declared in any area within the territory of India.

9 The martial law is imposed under the extraordinary circumstances like war, invasion, insurrection, rebellion, riot or any violent resistance to law.

MARTIAL LAW AND FUNDAMENTAL RIGHTS



- 10** Its justification is to repel force by force for maintaining or restoring order in the society.
- 11** During the operation of martial law, the military authorities are vested with abnormal powers to take all necessary steps.
- 12** They impose restrictions and regulations on the rights of the civilians, can punish the civilians and even condemn them to death.

MARTIAL LAW AND FUNDAMENTAL RIGHTS



13 The Supreme Court held that the declaration of martial law does not ipso facto result in the suspension of the writ of habeas corpus.

14 The declaration of a martial law under Article 34 is different from the declaration of a national emergency under Article 352.

15 The differences between the two are summarized below.

MARTIAL LAW AND NATIONAL EMERGENCY

MARTIAL LAW

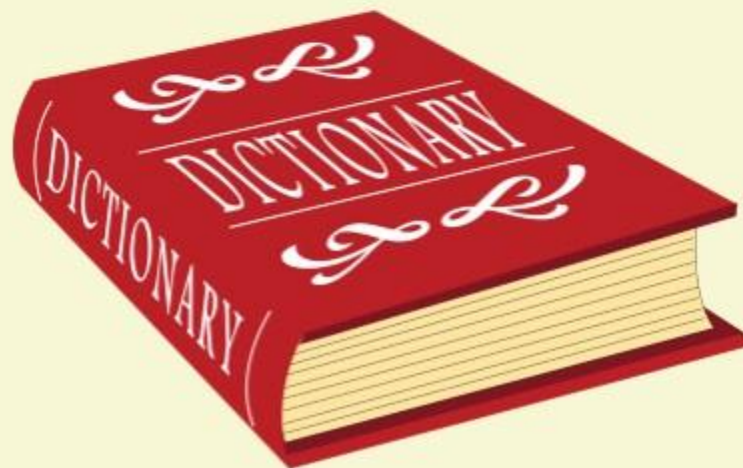
- 1 It affects only Fundamental Rights.
- 2 It suspends the Government and Ordinary Law Courts.
- 3 It is imposed to restore the breakdown of law and order due to any reason.
- 4 It is imposed in some specific area of the country.
- 5 It has no specific provision in the Constitution. It is implicit.

NATIONAL EMERGENCY

- 1 It affects not only Fundamental Rights but also Centre-State relations, distribution of revenues and legislative powers between Centre and States and may extend the tenure of the Parliament.
- 2 It continues the Government and ordinary law courts.
- 3 It can be imposed only on the three grounds war, external aggression or armed rebellion.
- 4 It is imposed either in the whole country or in any part of it.
- 5 It has specific and detailed provision in the Constitution. It is explicit.

THESAURUS FOR DIFFICULT WORDS IN THIS MODULE

WORD	MEANING
Indemnify	Secure or protect someone against legal responsibility for their actions
Forfeiture	The loss or giving up of something as a penalty for wrong
Ipso facto	By the very fact or act (or) by the fact itself



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